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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

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PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

WESTERN PROVINCE PROVINCIAL COUNCIL

The Notification made under Section 154 of the Urban Councils Ordinance read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989

I, Roshan Goonetilleke, the Governor of Western Province, by virtue of the powers vested in me under Section 154 of Urban Councils Ordinance read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989, do hereby declare that By Law relating to Procedure for the Conduct of Business at Meetings of the Urban Council, drafted by the Panadura Urban Council under Section 153 of the Urban Councils Ordinance read with Section 157 of the same Ordinance has received my assent.

ROSHAN GOONETILLEKE,
RWP & BAR VSV USP
PHD FIM (Sri Lanka) NDC PSC
Marshal of the Sri Lanka Air Force,
Governor,
Western Province.

At the Office of the Governor of Western Province,
Western Provincial Council Building,
No. 204, Denzil Kobbekaduwa Mawatha,
Battaramulla,
18th December, 2020.



Draft By-Laws made under Section 153 of the Urban Council Ordinance which shall be read together with the sub-section 157(1) of the said Ordinance.

BY-LAWS RELATING TO THE PROCEEDINGS OF THE MEETINGS OF URBAN COUNCIL

1. These By-Laws shall be enforced for the regularization of the conduct of Meetings of the Urban Council and the Standing Committees.
2. These By-Laws may be cited as the by-laws relating to the proceedings of the Meetings of the Panadura Urban Council.
3. The Ordinary Meeting for each calendar month shall be conducted by the Urban Council in its office premises on a date and at a time previously scheduled by the Council subject to the provisions mentioned in the fundamental law. If the date so scheduled is a holiday, said Meeting shall be conducted on the immediate next working day. Ordinary Meeting.

4. A notice for convening an ordinary meeting of the Urban Council shall be delivered to every member of the Council together with the Agenda relevant to the Meeting four days prior to the Meeting except Saturdays, Sundays and Public Holidays. On certain occasion when the notice under this Section can not be delivered personally for whatever reason, placing of the said notice at the place where the Member is usually residing whom the notice has been addressed to, shall be considered that the Notice has been duly delivered.

However, on an occasion when it has been decided by the Council that the Council may be convened and the documents may be delivered by e-mail when every Member has handed over his / her e-mail address to the Secretary of the Council which has been proved to be his / her e-mail address having declared his / her discretion, addressing of the Notice, convening the Meeting under the said Section and all documents relevant to the same, to the e-mail address of the relevant Members having spared the due time, shall be considered that the same is a lawful delivery.

5. A Notice for convening a Special General Meeting of the Urban Council shall be prepared so as to include the proposal or proposals regarding which a decision shall be reached at the said Special General Meeting and the same shall be delivered to each of the Members two days from the date on which the said Special General Meeting has been fixed to be held or else the Notice shall be placed at the address of residence. Special General Meeting.

However, on an occasion when it has been decided by the Council that the Council may be convened and the documents may be delivered by e-mail when every Member has handed over his / her e-mail address to the Secretary of the Council which has been proved to be his / her e-mail address having declared his / her discretion, addressing of the Notice, convening the Meeting under the said Section and all documents relevant to the same, to the e-mail address of the relevant Members having spared the due time, shall be considered that the same is a lawful delivery.

- 6.(1) The Quorum of on Ordinary Meeting and a Special General Meeting shall be one third of the number of Members holding office of that Council who are present on the day when the said Meeting is held. When it seems to the Chair that there is no Quorum in the Council or whenever the attention of the Chair is focussed on the same by another Member, proceedings of the Council shall be discontinued and it shall be ordered for the Quorum bell to be rung. If there is no Quorum in the Council even after a time of five minutes has elapsed after acting in that manner, Council shall be adjourned for another time. Quorum.

- (2) While there shall be the Quorum required to be necessary on an occasion when the Council has resolved themselves into a Committee of the whole Council, even with regard to the occasions when there is no Quorum in the same manner, the provisions in the Sub-Section (1) above shall be applicable similarly.

Adjournment for want of Quorum.

- 7.(1) If there is no Quorum in the Council even after a time of thirty minutes has elapsed from the time when some Meeting is summoned, the said Meeting shall be adjourned to a whatever time to be fixed by the Chair.
- (2) If a Meeting which, was adjourned by the Chair under this Section did not have the Quorum for the meeting within twenty four hours after the first time when the same was so adjourned. The Council so adjourned, shall be reconvened, on a date not more than fifteen days from which the date on which the Council was adjourned, for the Agenda of the day on which the Council was adjourned. The Notice, for the adjourned Meeting to be convened, shall be served to all Members three days prior to the date on which the Meeting is to be held except Saturdays, Sundays and Public Holidays. Or else, the Notice shall be placed at the address of residence.

However, on an occasion when it has been decided by the Council that the Council may be convened and the documents may be delivered by e-mail when every Member has handed over his / her e-mail address to the Secretary of the Council which has been proved to be his / her e-mail address having declared his / her discretion, addressing of the Notice, convening the Meeting under the said Section and all documents relevant to the same, to the e-mail address of the relevant Members having spared the due time, shall be considered that the same is a lawful delivery.

Adjournment of the Council on following by the wayside.

8. An Ordinary or Special Meeting having the Quorum of the Council which falls by the wayside from time to time may be adjourned by the Chair with the consent of the Council. At the same time, whatever proceedings, other than the proceedings remained unfinished which have been mentioned in the Agenda of a Meeting adjourned, shall not be conducted without the permission of the Council of a Meeting adjourned due to falling by the wayside. Further, a Meeting, adjourned for falling by the wayside, is not held within 24 hours after the first time that the same was so adjourned, while the Agenda shall be completed having met on a day within fifteen days from the date on which the Meeting was adjourned, the Notice, convening the said Meeting, shall be delivered to all Members three days prior to the date on which the Meeting is to be held except Saturdays, Sundays and Public Holidays. Or else the same shall be placed at the address of the residence.

However, on an occasion when it has been decided by the Council that the Council may be convened and the documents may be delivered by e-mail when every Member has handed over his / her e-mail address to the Secretary of the Council which has been proved to be his / her e-mail address having declared his / her discretion, addressing of the Notice, convening the Meeting under the said Section and all documents relevant to the same, to the e-mail address of the relevant Members having spared the due time, shall be considered that the same is a lawful delivery.

Order precedence.

9. For the purpose of all matters relating to the precedence and the seniority of the Members of the Council, while the Chairman, the Vice Chairman and the successive reelected Member shall be deemed according to the order of continuous seniority that they were elected to the said Council, when the continuous seniority is equal, they shall be deemed according to the order that is mentioned in the declaration of the Election Commissioner / Returning Officer and when there is no continuous seniority, the order of priority in the declaration of the Election Commissioner / Returning Officer shall be deemed.

10.(1) If, every Member, including the Chairman, the Vice Chairman, attending the Ordinary General meeting, the Special General Meeting or the Committee Meeting, is a male while he should have been clad in his National Dress or European Dress, if it is a female, she should have been clad in her National Dress.

(2) When there is an official Cloak recognized by the Council for the Chairman, the Chairman shall take the Chair having dressed in the Official Cloak.

(3) The Official Cloak for the Chairman shall be decided on by the Council.

11. Strangers, including the Media both Electronic and Print, may be present at council Meetings in the places set apart for them, but they must withdraw when called upon to do so by the Chair, when, in the opinion of the Majority of the Members present at the Meeting, expressed by resolution, such exclusion from the chamber of Council is deemed advisable in the interest of the general public.

Present of
strangers.

However, it shall not be an obstruction under this Section for the officers, who are called by the Chairman for the performance of duties, to remain in the Chamber of Council.

12. The proceedings of the Council shall be transacted in the following order :

Order proceeding.

- (a) Confirmation of the minutes of the last preceding General Meeting.
- (b) Notices to be issued by the Chairman.
- (c) Resolutions on permission for absence.
- (d) Submission of memorandums, petitions and complaints.
- (e) Question due notice of which has been given.
- (f) Motions due notice of which has been given.
- (g) Review on receipts and expenses of the Council and monthly periodicals.
- (h) The matters which have been included in the Agenda having further decided by the Council.

13.(1) The minutes including all proceedings and directions of the Meeting of the Council shall be maintained in a book of minutes by the Secretary of the Council in the medium of language in which the proceedings of the meetings are conducted.

Confirmation of
the minutes.

(2) Copies of the minutes of each Meeting in the preceding calender month shall be delivered to all Members of the Council having included in the Agenda of the Ordinary Council Meeting of the successive Council in the manner how the Notices are delivered together with the Notices convening the Meetings.

(3) While it shall be moved that the minutes were taken as read and confirmed without the minutes being read in the Meeting of the Council, only if the amendments have to be rectified, having considered the same, minutes shall be taken as confirmed after the minutes being seconded.

14.(1) Notices may be forwarded with regard to the matters which are deemed that the Council shall be made aware of by the Chairman relevant to his scope of subjects.

Notice by the
Chairman.

(2) No opportunity is available with any Member to speak on the matters included in the Notices to be made under this item or the matters included in such a statement can not be taken up for debate at that stage.

(3) While the statements to be made by the Chairman under this Section shall be solely relevant to the scope of subjects of Local Government, no Member shall be prejudiced by such statements.

Leave of absence.

- 15.(1) On an Occasion when some Member is unable to attend the Meeting of the Council on fair grounds, when a request has been made by himself or through another Member in writing from the Chairman or by a telemail message to be sent to the Council or by an e-mail message to be sent to the official e-mail address of the Council, the opportunity to be absent may be obtained by a motion to be placed before the Council relevant to the same.
- (2) A motion with regard to the same may be forwarded by another Member with the permission of the Chairman or the Chair.

Submission of memorandums petitions and complaints.

- 16.(1) Every memorandum, petition and complaint to be forwarded to the Council shall be relevant to a matter regarding the scope of subjects of Local Government
- (2) while every memorandum, petition and complaint shall be addressed to the Chairman, the same should have been written in decent language.
- (3) The date on which every memorandum, petition and complaint are signed and the private address of the person who submits the same should have been clearly mentioned. At the same time, while the same should have been written in legible handwriting, the relief sought should also have been clearly mentioned.
- (4) If there are any documents essential for the matters mentioned in the memorandum, the petition and the complaint to be proved, the photostat copies of the same should have been attached to the petition.
- (5) The matter shall not be relevant to a matter being heard in a Court of Law or before an Institution of dispensing justice or the matter which has been submitted for arbitration as of then.
- (6) No Member may submit any memorandum, petition or complaint on his behalf.
- (7) Any member presenting a memorandum, petition or complaint shall limit his speech, to "Hon. Chairman, I shall hereby present the memorandum/ petition / complaint made by Residing at No in relation to the matter of", and no provision shall be granted for a debate on that matter.
- (8) When a memorandum, a petition or a complaint to be submitted by some Member, is being so submitted, any other Member may propose that the same be read when the said proposal is submitted, it shall be stated as to why it is expected for the same to be read.
- (9) When a proposal has been presented under Sub-Section (8) above, while the said memorandum, the petition or the complaint shall be read out by the Member who submitted the same only after the same being seconded, no Member shall speak in that regard.
- 17.(1) It shall be lawful for a Chairman to decide on further action regarding a memorandum, a petition or a complaint to be submitted under Section 16 having referred the same to a suitable Committee or for evidences to be examined regarding a complaint which shall be examined for the time being or when it is relevant to a matter which may be solved as the Chairman, for taking action to solve the same.
- (2) On an occasion when it is intended by the Chairman to examine evidences from the witnesses, it is lawful for the Chairman to inform the Petitioner / Complainant that a list inclusive of the names, the places of residences and the occupations of the said witnesses whom the Petitioner is in need of be forwarded to the Secretary at least three days prior to the date on which the examination of evidences is due to take place.

- 18.(1) Questions relevant to the activities of the Council may be asked from the Chairman. Questions put seeking oral answers from the Chairman.
- (2) The Member who submits the Questions having prepared the relevant Questions in writing shall, hand over the same to the Secretary seven days prior to the date on which the Council's Meeting is held except Saturdays, Sundays and Public Holidays for the same to be included in the Agenda. Or else, the same shall be referred to the e-mail address which has been recognized by the Council for the submission of proposals which has been provided with the Members for that purpose.
- (3) The Questions which are handed over to the Secretary shall be included in the Agenda in order of the receipt of the Questions.
- (4) More than one question shall not be accepted to be included in the Agenda on behalf of one session of the Council from one Member.
- (5) A written reply relevant to each of the questions shall be read out by the Chairman in the Council.
- (6) While no Member shall address the Council upon a question, expression of opinion or a statement of facts shall not be included.
- (7) Any Member may raise only a supplementary question for the purpose of further getting clarified any matter of fact regarding which an answer has been given.
- (8) The right of a Member for asking questions in the Council shall be subject to the following limitations.
- (a) A question shall be limited to one subject
 - (b) Except for one name which is required compulsorily for getting clarified a question, another name or statement shall not be included in the answer.
 - (c) An argument, a presumptive decision, an imputed allegation, a term indicating unnecessary details or a derisive term shall not be included in the question.
 - (d) if a statement is included in a question, the Member who asks the question should have been satisfied with the accuracy of the same.
 - (e) Questions shall not be asked at least under a legal opinion regarding a matter judgement of which is pending in Court.
- 19.(1) While every motion shall be a written one, the same should have been signed by the Member himself who submits the motion. Except if the relevant motion together with a request for including in the Agenda has been handed over to the Secretary seven days prior to the date on which the Council's Meeting is held except Saturdays, Sundays and Public Holidays or the same has been referred to the e-mail address which has been required, the relevant motions shall not be included in the Agenda. Motions due notice of which has been given.
- (2) All notices being received regarding the Motion shall be recorded having numbered according to the time as and when they are received.
- (3) While a Motion shall be submitted to the Chairman prior to the same being included in the Agenda, if the relevant Motion is not in conformity with the Law or if the Chairman is of the opinion that the same is not relevant to a matter for which the authority has been granted by the

written Law for a decision to be arrived at by the Council, having ordered that the said Motion shall not be included in the Agenda, the same shall be brought to the notice of the Member in detail who submitted the Motion.

- (4) Every Motion to be submitted shall be relevant to a matter for which the authority has been granted by written Law for a decision to be arrived at by the Council relevant to the same.
- (5) Submission of a Motion for repealing some Motion which was carried within the six months preceding the date on which the Council's Meeting was fixed to be held or another Motion yielding results equal to that of a Motion rejected within a period of six months preceding the date on which the Council's Meeting was fixed to be held, except only if the same has been mentioned in the heading specifically in that regard in addition to the signature of two more Members, the said Motion shall not be included in the Agenda. After taking necessary measures in regard to that Motion, no Member shall have the power to bring back a similar Motion within the period of following six months.
- (6) No Motion shall be deemed to have been submitted for debate until such time the same is seconded having moved by another Member.
- (7) Whoever Member shall rise from his seat and second the relevant Motion or the amended Motion subject to his right to speak at a subsequent stage of the debate having addressed the Chair and his right to arrive at whatever decision regarding the Motion.
- (8) If any Member wants to move a Motion to the Council on that day regarding essential matters which should be promptly executed for which notice was not given, except if the same has been handed over to the Secretary together with a request made to the Chairman having written and signed the Motion, the Chair shall not grant permission for moving a Motion which is not included in the Agenda.
- (9) Every Motion relevant to the recommendations included in the minutes of the Committees which have been submitted to the Council shall be moved by the Chairman having included in the Agenda.

Withdrawal of the motion.

20. A Motion or an amendment submitted by some Member may be withdrawn by the said Member with the permission of the Council. That permission shall not be debated.

Re-submission of a withdrawn Motion.

21. Some Motion which was withdrawn may be re-submitted to the Agenda of a Meeting which is to be held subsequently. But, no Motion similar in meaning to a Motion carried or rejected within the entire period of time mentioned in the Section 19 (5) shall not be brought.

Amendment to a Motion.

- 22.(1) A Member hoping to introduce an amendment to a Motion, shall hand over the amended Motion to the Secretary having prepared the same in writing.
- (2) Every amendment, shall be relevant to the Motion to be taken up for discussion, at the time of the same being introduced.
- (3) Every amendment Motion shall be read out prior to the same being moved to the Council.
- (4) No amendment Motion shall be taken up for discussion, if the same was not seconded.
- (5) A Member, who seconded an amendment in the formal manner, shall be permitted to speak on the same subsequently.

- (6) When an amendment has been moved and seconded to a Motion being discussed, a second or a subsequent amendment shall not be introduced until such time the needful has been done with regard to the first amendment. If an amendment is carried, while the amended Motion shall replace the original Motion, if there are any further amendments, the same shall be regarding the said amendment Motion.
23. Prior to a Budget or a Supplementary Budget being submitted to the Council having prepared by the Chairman under Section 178 of the Urban Council's Ordinance of Chapter 255, each of the Subjects of the Draft Budget or the Supplementary Budget, of a combined Committee Meeting, consisting of all Member of the Council which meets for that purpose itself, shall be separately considered. Council's approval on the Budget.
24. Considering the matters submitted in the Combined Committee, a Budget or a Supplementary Budget, prepared by the Chairman at last, shall be submitted by the Chairman to the Council.
25. All subjects or a certain subject of a Budget or a Supplementary Budget, to be submitted to the Council, may be changed in a little degree by the Council, may be rejected or else, while some subject may be added to it, while every change, rejection or addition of some subject relevant to it shall be submitted as an amendment to the Budget or the Supplementary Budget, provisions regarding amendments of these By-Laws shall be applicable regarding every such amendment.
- However, if all subjects or one of the subjects included in a Budget or a Supplementary Budget to be submitted by the Chairman are rejected, on behalf of the subject or subjects so rejected, alternative subjects shall be moved and seconded by the Council in accordance with the provisions of the written Law.
26. If the Chairman is not in agreement with the changes made in a little degree, rejections or addition of some subject to be decided on by the majority of the Council who cast the vote regarding all subjects or some subject included in the Budget or the Supplementary Budget moved by the Chairman for the approval, the Budget or the Supplementary Budget, to be moved by him in a Committee which will be convened subsequently, may be re-submitted to the Council for the approval.
27. **No member may speak at a meeting to any motion or question after it has been fully put by the Chairman of the meeting. A motion or question is fully put when the voting has been taken thereon.** Cessation of debate.
- 28.(1) While the Chairman of the Meeting shall inquire about the consent with regard to the Motion, then the Council may express the consent by the show of hands unanimously. Or else, any Member may request for a division. In that event, the votes shall be taken by the Secretary asking each Member separately according to the order of precedence, how he desires to vote and recording the vote accordingly. Voting and recording of votes.
- (2) **On any question being put, either in Council, or in Committee of the whole Council, every member present shall, unless he declines to vote record his vote either in favour or against.**
- (3) In the event of a member present declining to vote, when a division has been called for, the Secretary shall enter his name upon the minutes as having declined to vote.
- (4) **When it is moved by a Member that a secret ballot be taken with regard to some matter and if the Council is in agreement, the vote shall be taken in that manner.**

Reviewing the minutes of the Committees.	29.(1) The minutes which have been presented with the Agenda having included in the same, may be provided with to the General Council for the same to be separately reviewed. (2) For the purpose of reviewing the committee reports, Council may resolve themselves into a Committee of the Whole Council as decided by the Council according to the provisions of the By-Laws.
Considering revenue and expenditure reports.	30.(1) Reports on Council's revenue and expenditure of the preceding month and reports on the progress of revenue from January to the previous month, expenditure from January to the previous month should be reviewed by Council according to the annual budget. (2) For the purpose of this Section, the Council may resolve themselves into a Committee of the whole Council. (3) Monthly statements relating to receipts and payments, progress reports on work and other documents specified by Council may be presented to the Council for this purpose. 31.(1) The matters which were included in the Agenda, after having decided by the Council, shall be completed by the Council in the same order they have been included in the Agenda. (2) Whatever a matter not conforming to the order specified in the agenda of the Council shall not be considered by the Council under this Section.
Casting vote of Chairman.	32.(1) The Chairman shall have an original vote in common with the other Members as also a casting vote if upon any question the votes are equal. (2) When the Council is in Committee of the whole Council, the Chairman shall have an original vote in common with the other Members and also a casting vote if upon any question the votes shall be equal.
Members dissenting.	33. It shall be competent for any member, who is in a minority, to record the reasons for his dissent from the opinion on of the majority, and such written dissent, if sent to the Secretary, within one week of the meeting in question, shall be entered by the Secretary at the end of his minutes of the proceedings.
Order of the day.	34. Unless resolved that the order of the day's proceedings of the Urban Council be otherwise, the business shall be discussed in the order specified in the Agenda.
Preservation of Order.	35.(1) It shall be the duty of the Chairman of a meeting to preserve order, and his decision on all disputed points of order shall be final. (2) Any member deviating from these regulations at a meeting may immediately be called to order by the Chairman of the meeting, or by any other member of the Urban Council rising to a point of order.
Decision on questions of order.	36. When the question of order has been stated, the member who raises it shall resume his seat, and no other member except by leave of the Chairman or presiding Member of the meeting shall speak till the Chairman has decided the question after which the member who was addressing the Urban Council or Committee of the Urban Council at the time of question was raised shall be entitled to proceed with his speech, if he conforms to the Chairman's ruling of the Committee of the Council. If he does not so conform, the Chairman may refuse to allow him to proceed with his speech.
Members not explaining or retracting.	37. Any member who fails to explain or retract any objectionable words used by him or offer apologies for the use thereof to the satisfaction of the Council may be censured or otherwise dealt with as the Urban Council thinks fit.

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| 38. | When the Chairman of a meeting has expressed his desire to speak, any member then speaking shall immediately resume his seat. | When Chairman speaks. |
| 39.(1) | The Chairman of a meeting may name any member who disregards the authority of the Chair, or abuses the provisions of these By-laws of the Council by persistently and wilfully obstructing the business of the Council, and the Chairman may forthwith put the question on a motion being made by any member or from the Chair (no amendment, adjournment or debate being allowed) “that such member be suspended from the service of the Council”. | |
| (2) | If any such motion be carried and any member be suspended under this section, this suspension on the first occasion shall continue for one month, on the second occasion for two months, and on the third or subsequent occasion for three months. | |
| (3) | Not more than one member shall be named at the same time, unless several members present together have jointly disregarded the authority of the Chair. | |
| (4) | If any member or members acting jointly who have been suspended under this rule from the service of the Urban Council, shall refuse at any time during the period of suspension to obey the directions of the Chairman of a meeting to withdraw from the precincts of the Urban Council Chamber, the Chairman may direct such step be taken as are required to enforce his decision. | |
| 40. | The Chairman of a meeting, after having called attention to the conduct of a member who persists in irrelevance or tedious repetition, either of his own arguments or of the arguments used by members in debate, may direct the member to discontinue his speech. | Irrelevance or Tedious Repetition. |
| 41.(1) | The Chairman of a meeting may order members whose conduct is grossly disorderly to withdraw immediately from the Council Chamber during the remainder of that day’s sittings and may direct such steps to be taken as are required to enforce his order. | Disorderly Conduct. |
| (2) | If on any occasion the Chairman of a meeting deems that his powers under this are inadequate he may name such member or members in pursuance of the provisions of Section 39. | |
| 42. | Members who are suspended under this rule or are directed to withdraw shall forthwith withdraw from the precincts of the Council Chamber. | Duly to obey order of suspension or withdrawal. |
| 43. | An adjournment of the discussion of any question may be moved by a member at any time and if seconded, shall be forthwith put to the vote. In the event of a grave disorder arising at a meeting, the Chairman of the meeting may, if he thinks it necessary to do so, adjourn the meeting without putting the question of adjournment to the Urban Council or suspend the meeting for a time to be named by him. | Power to Adjourn. |
| 44. | In speaking to any matter under consideration of the Urban Council or a committee of the whole Council the following rules shall be strictly observed | Rule for members’ speaking. |
| (a) | Every member shall at a meeting except in Committee address his observations to the Chairman of the meeting and shall speak standing, | |
| (b) | When any member concludes his observations he shall resume his seat and any other member wishing to address the Council may then speak. | |
| (c) | A member shall not read his speech, but he may read extracts from written or printed papers in support of his arguments. | |

- (d) If two members desire to speak at the same time at a meeting the Chairman of the meeting shall call on the member who first catches his eye.
- (e) Every member shall confine his observations to the subject under consideration.
- (f) No member shall impute improper motives to any other member.
- (g) All remarks of a personal nature shall be avoided.
- (h) A member shall speak to the question before the Urban Council or any amendment proposed thereto.
- (i) No member shall speak more than once on any proposition before the Urban Council except in explanation to order, or when the Urban Council is in committee.
- (j) By the indulgence of the Urban Council, a member may explain matters of a personal nature, although there is no question before the Council, but such matters may not be debated and he must confine himself strictly to the vindication of his own conduct.
- (k) The mover of any resolution or motion may reply after all the members present have had an opportunity of addressing the Urban Council and before the question is put, but he shall strictly confine himself to answering previous speakers, and shall not introduce any new matter into the debate. The right to reply shall not extend to the mover of an amendment.

Resolving into
Committee of the
whole Council.

45. The Council may at any time resolve themselves into a Committee of the Whole Council and on its resuming the result of its deliberations shall be dealt with by the Urban Council.

It shall be competent for any member at any stage of any discussion in a Committee of the whole Council that the Council should resume.

The question shall be put to the vote by the Chairman of the Committee and, if the motion is carried, the Urban Council must immediately resume the Council.

Advisory
Committee.

- 46.(1) Subject to the provisions mentioned in the fundamental Law, following Standing Committees and the other Committee Committees which are to be adopted as suitable on the requirement of the Council shall be appointed by the Council at the commencement of the year.

- (a) Committee on Finance and Policy Making.
- (b) Procurement Committee.
- (c) Committee on Health, Environment and Disaster Management.
- (d) Committee on Industries and Properties.
- (e) Committee on People's Petitions.

- (2) While the number of Members of the Standing Committees mentioned in the Section 46 (1) shall be suitably decided on by the Council, representation to each of the Committees shall be granted in proportion to the number of offices being held by each of the Independent Groups or the Political Parties of the Urban Council. When the said number is an Integer and a Fraction, the Integer immediately higher to that Integer and Fraction shall be deemed to be the number of Standing Committee Members for each of the Independent Groups or the Political Parties for the purpose of these By-Laws.
 - (3) Such a Committee appointed as mentioned above, shall not perform certain functions after the expiration of the period of the year for which period the said Committee was appointed.
 - (4) The Chairman of the Committee on Finance and Policy Making to be appointed by the Council shall be the Chairman of the said Committee ex officio.
 - (5) The quorum for the Meetings of every such Committee shall be one-third of the number of Members of the Committee in office on the date of the Meeting. When one-third of such number is an Integer and a Fraction, the Integer immediately higher to that Integer and Fraction shall be deemed to be one-third for the purpose of these By-Laws.
 - (6) On every occasion when a Combined Meeting is held with the Committee on Finance appointed by the Council, the Chairman of the Council shall chair the Combined Meeting and a Combined Meeting shall be convened by the Chairman.
 - (7) Unless there is a one-third of quorum present at a Combined Meeting that comprises two Committees or more that that for the time being and unless one Member of each Committee in the Combined Meeting has been present, no proceedings shall take place at such a Combined Committee Meeting.
 - (8) In the absence of the Chairman of a Meeting of any Committee, the Members shall select one of their Members to preside, and such Member shall for that Meeting have all the powers of the Chairman.
 - (9) When a Committee is in agreement with the minutes, the same shall be got confirmed on the same day having signed by all Members. The Committee minutes so adopted shall be presented to the Council.
 - (10) The Electronic and Print Media shall be excluded from all meetings of Committees.
47. While all Members shall report their attendance in an Attendance Register being maintained by the Secretary, the said Attendance Register shall be kept in the custody of the Secretary. Attendance.
48. In these By-Laws, unless the context otherwise requests -
- “Council” means the Panadura Urban Council established under the Urban Council Ordinance of chapter 255.
- “Chairman” means the Chairman elected to the Panadura Urban Council.
- “Committee” means the all the Committees appointed under the Urban Councils Ordinance for advising the Council.
49. In case of any inconsistency between Sinhala and English / Tamil texts of these By-Laws, Sinhala text shall prevail. Inconsistency among texts.

WESTERN PROVINCE PROVINCIAL COUNCIL

The Notification made under Section 154 of the Urban Councils Ordinance read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989

I, Roshan Goonetilleke, the Governor of Western Province, by virtue of the powers vested in me under Section 154 of Urban Councils Ordinance read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989, do hereby declare that By law relating to Procedure for the Conduct of Business at Meetings of the Urban Council, drafted by the Kolonnawa Urban Council under Section 153 of the Urban Councils Ordinance read with Section 157 of the same Ordinance has received my assent.

ROSHAN GOONETILLEKE,
RWP & BAR VSV USP
PHD FIM (Sri Lanka) NDC PSC
Marshal of the Sri Lanka Air Force,
Governor,
Western Province.

18th December, 2020,
At the Office of the Governor of Western Province,
Western Provincial Council Building,
No. 204, Denzil Kobbekaduwa Mawatha,
Battaramulla.

**By law relating to Procedure for the Conduct of Business
at Urban Council Meetings**

1. These by laws shall be enforced to regularize the procedure for conducting business at meetings and Committee meetings of Urban Council.
2. This by law may be cited as the Bylaw relating to Procedure for the Conduct of Business at Meetings of Kolonnawa Urban Council.

Ordinary Meeting.

3. The Urban Council shall, subjected to the provisions stated in the initial law, be held on every calendar month on a day and time pre-determined by it at the office of the Urban Council. If that day falls on a Public Holiday, then such meeting shall be convened on the next available working day.
4. A notice for convening an Ordinary Meeting of Urban Council, along with the agenda relevant to such meeting shall be handed over by the Chairman to every member of Urban Council prior to four days of such meeting excluding Saturdays, Sundays and Public Holidays. In the event of failure to personally hand over the notice specified under this Section, leaving it at the place where the member usually resides at shall be considered as a proper handing over of the notice.

However, where the Council has decided that convening of the Council and handing over of documents should be carried out through electronic mail and where an electronic mail address confirmed by every member as their own electronic mail address and has been submitted to the Secretary, the notice under this Section for convening a meeting and all the documents relevant to it being forwarded to electronic mail addresses of all the members sparing the specified time, shall be considered as a legal handing over.

Special Meeting

5. A notice for convening a Special Meeting of Urban Council having included the proposition or propositions requiring to be decided at the said Special Meeting shall be handed over to every member of the Council prior to two days of the date such meeting has been scheduled to. Else, should be left at the place of residing.

However, where the Council has decided that convening of the Council and handing over of documents should be carried out through electronic mail and where an electronic mail address confirmed by every member as their own electronic mail address and has been submitted to the Secretary, the notice under this Section for convening a meeting and all the documents relevant to it being forwarded to electronic mail addresses of all the members sparing the specified time, shall be considered as a legal handing over.

6. (1) The quorum of an Ordinary Meeting or a Special Meeting shall be one- third of the number of members holding positions to that date. In every occasion the Chair observes that the Council is lacking quorum, or any member draws attention of the Chair to that matter, having suspended the affairs of the Council, the Chair shall order the summoning bells to be rung. If the quorum is not achieved within 5 minutes of such action being taken, the Council shall be postponed to some other time. Quorum.

- (2) When the whole Council has converted to a Committee of the Whole Council, it shall consist of the required quorum and provisions stated in the above Section (1) shall be applicable in the same manner in case of occasions where such quorum is absent.

7. (1) If the quorum of the Council failed to achieve after termination of thirty minutes of its summoning, such meeting shall be postponed to whatever time ordered by the Chair. Postponement due to absence of quorum.

- (2) If any meeting postponed by the Chair under this Section lacked quorum to assemble within 24 hours subsequent to postponement of that meeting, the time of which has been calculated from its first postponement, such meeting should be adjourned to another date. The Council adjourned thus, shall be assembled again on a date not exceeding 15 days of its adjournment for the agenda of the adjourned meeting. The notice for summoning the adjourned meeting shall be handed over to all the members or left at their residence three days prior to the scheduled date excluding Saturdays, Sundays and Public Holidays.

However, where the Council has decided that convening of the Council and handing over of documents should be carried out through electronic mail and where an electronic mail address confirmed by every member as their own electronic mail address and has been submitted to the Secretary, the notice under this Section for convening a meeting and all the documents relevant to it being forwarded to electronic mail addresses of all the members sparing the specified time, shall be considered as a legal handing over.

8. An Ordinary or Special Meeting of Council in quorum may be suspended from time to time according to the agreement of Council. Except the affairs not attended in the Agenda of such suspended meeting, no other affair shall be attended at a suspended meeting. A suspended meeting shall assemble at a date not expiring fifteen days from the date of suspension and complete the agenda, wherein the notice for summoning such meeting shall be handed over to all the members three days prior to the scheduled date excluding Saturdays, Sundays and Public Holidays, else, shall be left at their residence. Adjournment of meetings.

However, where the Council has decided that convening of the Council and handing over of documents should be carried out through electronic mail and where an electronic mail address confirmed by every member as their own electronic mail address and has been submitted to the Secretary, the notice under this Section for convening a meeting and all the documents relevant to it being forwarded to electronic mail addresses of all the members sparing the specified time, shall be considered as a legal handing over.

Order of
Precedence.

9. For all purposes connected with precedence and seniority of members of the Council, the precedence order of Chairman, Deputy Chairman, successive re-elected members according to the consecutive seniority of the party or independent group elected to that Council and when consecutive seniority becomes equal, the order stated in the Election Commissioner's or Returning Officer's declaration, and in the absence of consecutive seniority, precedence order of Elections Commissioner's or Returning Officer's declaration shall be taken into consideration.
10. (1) Every member including Chairman, Deputy Chairman participating in Ordinary Meeting, Special Meeting or Committee Meeting if male, shall be dressed in his National Costume or European Suit and if female, shall be dressed in her National Costume.
- (2) Where there is an accepted official robe for the Chairman, he shall preside dressed in that official robe.
- (3) The official robe for the Chairman shall be made in the manner Council decides.

Visitor's
attendance.

11. Visitors including electronic and print media reporters shall take up places in the meeting hall allocated for each of them. However, on a matter opportune, if decided by the majority of members present at the day's meeting by way of a resolution passed at the Council that removal of them from the Chamber would be good for public welfare and the Chair requests for such vacation, they shall leave the Chamber.

Nevertheless, no hindrance shall be caused by this section to officers summoned by the Chairman to accomplish duties, to remain in the Chamber.

Order of
business.

12. The business of the Council shall be transacted in the following order.
 - (a) Confirmation of the minutes of previous Council meeting
 - (b) Announcements made by the Chairman
 - (c) Motions on permission of leave
 - (d) Presentation of memorandums, petitions, complaints
 - (e) Questions of which due notice has been given
 - (f) Motions of which due notice has been given
 - (g) Review on reports of Committee Meetings
 - (h) Reviewing on monthly statements relating to receipts and disbursements of the Council
 - (i) Matters included into agenda having further decided by the Council.
13. (1) Minutes that include all the proceedings and orders of the Council meeting shall be maintained by the Secretary of the Urban Council in a record book in the medium Council affairs take place.
- (2) Minutes of each calendar month's meeting shall be included into the Agenda of the successive month's ordinary meeting and along with the notice for convening the said meeting; it shall be handed over to all the members as if the convening notice is handed over.

Adopting the
Minutes.

- (3) At the succeeding meeting the question shall be put that the minutes be taken as read and confirmed and if there are any corrections to amendments only, having considered such, the minutes shall be confirmed and deemed as adopted.
14. (1) The Chairman may present notifications relevant to his subject-field relating to matters which he thinks important to be brought up into Council's notice.

Announcements by
Chairman.

- (2) No opportunity will be there for any member to speak on matters in the notifications made thus or debate on matters containing in such statement.

- (3) The statements made by the Chairman under this Section shall comply with the subject of Local Government and such statement shall not prejudice any member.
15. (1) Any member, when he is unable to participate in Council meetings on justifiable reasons, may make a written request to Chairman asking for Permission for Leave by himself or through other member. Permission for Leave.
- (2) A motion in that regard may be moved by the Chairman or by other member on permission of the Chair and Permission for Leave will be granted by the adoption of the motion.
16. (1) Every memorandum, petition or complaint presented to the Council shall relate to a matter relevant to the subject field of the Local Government Authority. Presentation of memorandums
Petitions,
Complaints.
- (2) Every memorandum, petition, complaint shall address either the Council or Chairman and should be composed in dignified language.
- (3) Every memorandum, petition, complaint shall clearly carry the date of signing and personal address of the person presenting it. Further, it shall be written in legible handwriting and relief expected thereby should be mentioned clearly.
- (4) If there are any documents to confirm the matters stated in the memorandum, petition or complaint; their certified copies shall be attached to the petition.
- (5) Matters such as the ones pending in a court of law or in any such institution meting out justice, or a matter that has already been forwarded for arbitration shall not be presented thus.
- (6) No member may present a memorandum, petition or complaint on his behalf.
- (7) Any member presenting a memorandum, petition or complaint shall limit his speech to “Hon. Chairman, I shall hereby present the memorandum/ petition / complaint made by Residing at No in relation to the matter of”, and no providence shall be allowed for a debate on that matter.
- (8) Whenever a memorandum, petition, complaint is presented by a member, any other member may propose it to be read out. However, the reasons as to why the motion should be read out at the time of its presentation need to be expressed.
- (9) When a motion has been presented under the above Subsection (8), such memorandum, petition, complaint shall be read out by the member who presented it only after it has been seconded wherein no member shall speak with regard to that.
17. (1) It shall be lawful for a memorandum, petition, complaint presented under Section 16 to be forwarded to a suitable committee by the Chairman and decide future action based on a report obtained from the said committee, or take measures to examine evidence with regard to a complaint requiring appropriate investigation, or take measures to solve the problem when it relates to a matter solvable by the Chairman.
- (2) When the Chairman intends to inquire evidences from any witnesses, it shall be lawful to inform the petitioner, complainant by the Chairman to forward to Secretary a list, at least prior to three days of the date fixed for examining evidences, containing those witnesses' names, places of residence, occupations by the petitioner requiring those witnesses.
18. (1) Questions relating to the affairs of the Council may be asked from the Chairman.

Questions
presented
expecting verbal
responses from
the Chairman.

- (2) Having prepared the relevant questions in writing, the member intending to forward the question shall handover the questions to Secretary prior to seven days of the date scheduled to hold the Council meeting excluding Saturdays, Sundays and Public Holidays, in order to be included into the agenda. Else, the motion should have been forwarded to the electronic mail address accepted by the Council to forward motions and assigned to members for the same purpose.
- (3) Questions received by the Secretary shall be included into the agenda in the order they have been received.
- (4) Not more than one question shall be accepted to the agenda from a member for one Council meeting.
- (5) A written response relevant to each question shall be read out by the Chairman at the meeting.
- (6) A member shall not address the Council on any motion, and even expression of opinion or presentation of facts shall not be included.
- (7) A supplementary question may only be presented by the member who raised the question or any other member for the purpose of further explanation of a matter or incident for which a response has been given in the Council.
- (8) The right to raise questions in the Council by a member shall be confined to the following limits.
 - (a) A question shall be limited to one subject
 - (b) Unless a name compulsorily required for the clarity in explanation of a problem, no other name or statement shall be mentioned in the question.
 - (c) An argument, presumed decision, attributed allegation, a phrase detailing unnecessary information, or defamatory phrase shall not be included into the question.
 - (d) If a question carries a statement, the member raising the question should have been satisfied as to the accuracy of the statement.
 - (e) Questions under a point of law relating to a matter pending before courts of law shall not be raised.

Motions of which
due notice has
been given.

19. (1) Every motion shall be written and carry the signature of the member presenting it. Unless the relevant motion, along with a request for inclusion of it in the agenda has been submitted to the Secretary prior to 07 days excluding Saturdays, Sundays and Public Holidays from the date scheduled for the Council meeting or forwarded to the electronic mail address assigned, relevant motions shall not be included into the agenda.
- (2) All the notices received relating to motions shall be date-stamped in the order they were received and numbered according to time they were received and documented.
- (3) Prior to including a motion into the agenda it needs to be submitted to the Chairman and if the Chairman is in the opinion that the relevant motion is inconsistent with the written law or relates to a matter non- authorized by the written law to be decided by the Council, he shall order the relevant motion to be not included in the agenda and inform of such non-inclusion to the member who presented the motion with reasons for rejection.

- (4) Every motion presented shall relate to a matter allowed by the written law to take a relevant decision by the Council.
 - (5) A motion presented with the intention of repealing any resolution which has been passed within the preceding six months to the date the Council is scheduled to meet, or a motion yielding the same effect as any motion which has been negated within the preceding six months to the date the Council is scheduled to meet shall not be included into the agenda unless it carries the signatures of four other members in addition to the signature of the member presenting the motion and the facts of which is mentioned in the heading specifically. Subsequent to transacting proper business relating to the said motion, no member shall have power to move a motion similar to that within the period of next six months.
 - (6) No motion, unless proposed by other member on permission of the member presenting the motion and seconded, shall be deemed as submitted for debate.
 - (7) Any member may, at the latter part of the debate, having risen from his seat and addressing the Chair shall second the relevant motion subject to his right to speech and his right to reach into whatever decision relating to the vote-taking on the motion.
 - (8) If any member intends to present a motion to the Council of that day relating to compulsory matters requiring immediate attention and which has not been informed beforehand, unless such motion has been written, signed and submitted along with a request made to the Chairman, the Chair shall not allow any such motion to be proposed, if it has not been included into the agenda.
 - (9) Every motion relating to recommendations included in the reports of Committees which have been tabled at the Council shall be included into the agenda and proposed to the Council by the Chairman.
20. Any motion or amendment presented by a member to the Council may be withdrawn by that member on the permission of Council. Such permission shall be devoid of a debate. Withdrawal of motions.
21. A motion withdrawn may be presented again to the agenda of a successive meeting. Presenting again a motion that has been withdrawn
22. (1) A member expecting to present an amendment to a motion shall have prepared the amended motion in writing and handed over to the Secretary. Amending a motion.
- (2) Every amendment shall relate to the motion in discussion at the time of presenting such motion.
 - (3) Every amendment-motion shall be read out before proposing it to the Council.
 - (4) No amendment-motion unless seconded shall be subjected to discussion.
 - (5) A member, who has got an amendment properly seconded, shall be allowed consequently to speak with regard to that matter.
 - (6) When an amendment has been proposed to a motion under discussion and seconded, second or subsequent amendments shall not be proposed unless proper action has been taken with regard to the first amendment. If an amendment got adopted, the amended-motion shall take the place of the initial motion and if there are further amendments, it shall relate to the said amended motion.

- Council approval.
23. Prior to presenting at the Council a budget document supplementary budget document which has been prepared by the Chairman under Section 178 of Urban Councils Ordinance (Chapter 255), each subject of the draft budget document or supplementary budget document shall be considered separately at a combined committee meeting assembled for that purpose.
24. Considering the matters presented at the Combined Committee meeting, a final budget document or a Supplementary budget Document prepared by the Chairman shall be presented to the Council by the Chairman.
25. Every subject of a budget document or a supplementary budget document presented to the Council should be considered separately and all the subjects or any subject considered thus may be amended minimally, rejected or supplemented with any subject by the Council and every such amendment, rejection or subject-supplementation shall be executed as an amendment to the budget document or supplementary budget document, whereas all the provisions relating to amendments in this bylaw shall be applicable therein.
- Even so, where all the subjects or any one subject of the budget document or supplementary budget document presented by the Chairman will be rejected by the Council, in place of such rejected subject or subjects, alternative subjects shall be proposed and passed by the Council in conformation to the provisions of the written law.
26. To the disagreement of the Chairman, when the majority of the Council enjoying voting rights have decided minor amendments, rejections or subject-supplementations to all the subjects or any subject of the budget document or supplementary budget document proposed for adoption by the Chairman, such budget document or supplementary budget document shall be presented again by Chairman at a successive Council meeting for adoption.
- Cessation of debate.
27. No member may speak at a meeting to any motion or question after it has been fully put by the Chairman of the meeting. A motion or question is fully put when the voting has been taken thereon.
- Voting and recording of Votes.
28. (1) The question shall be put by the Chairman of the meeting, and the Council may express its consent by a show of hands, else, any member shall call for a division and in that event the votes shall be taken by the Secretary asking each member separately according to the order of precedence, how he desires to vote, and recording the vote accordingly.
- (2) On any question being put, either in Council, or in Committee of the Whole Council, every member present shall, unless he declines to vote record his vote either for the ayes or the noes.
- (3) In the event of a member declining to vote, when a division has been called for, the Secretary shall enter his name upon the minutes as having declined to vote.
- (4) Unless it has been facilitated to take vote under a secret ballot with regard to a specific appropriate matter stated in the written law, vote shall be recorded by asking each member separately with regard to every other matter.
- Committee report reviewing.
29. (1) Committee reports included in the Agenda and presented along with the agenda may be reviewed separately by the ordinary meeting.
- (2) For the purpose of reviewing the committee reports, Council meeting may convert to a Committee of the Whole Council as decided by the Council according to the provisions of the bylaw.

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| <p>30. (1) Reports on Council's revenue and expenditure of the preceding month and reports on the progress of revenue from January to the previous month, expenditure from January to the previous month should be reviewed by Council according to the annual budget document.</p> <p>(2) For business transaction of this Section, the Council may convert to a Committee of the Whole Council.</p> <p>(3) Monthly statements relating to receipts and payments, progress reports on work and other documents specified by Council may be presented to the Council for this purpose.</p> | <p>Considering revenue and expenditure reports.</p> |
| <p>31. (1) Businesses included into the agenda after having decided by the Council, shall be completed by it in the same order they have been included into the agenda.</p> <p>(2) Whatever a matter not conforming to the order specified in the agenda of the Council shall not be considered by the Council under this Section.</p> | |
| <p>32. (1) The Chairman shall have an original vote in common with the other members of the Urban Council and also a casting vote if upon any question an equality of vote results.</p> <p>(2) When the Urban Council is in a Committee of the Whole Council, as provided under this bylaw, the Chairman shall have an original vote in common with the other members and also a casting vote if upon any question an equality of vote results.</p> | <p>Casting Vote of Chairman.</p> |
| <p>33. It shall be competent for any member, who is in a minority, to record the reasons for his dissent from the opinion on of the majority, and such written dissent, if sent to the Secretary, within one week of the meeting in question, shall be entered by the Secretary at the end of his minutes of the proceedings.</p> | <p>Members dissenting.</p> |
| <p>34. Unless resolved that the order of the day's proceedings of the Urban Council be otherwise, the business shall be discussed in the order specified in the agenda.</p> | <p>Order of the day.</p> |
| <p>35. (1) It shall be the duty of the Chairman of a given meeting to preserve order, and his decision on all disputes and points of order shall be final.</p> <p>(2) Any member of the Urban Council deviating from these regulations at a meeting may immediately called to order by the Chairman of the meeting through his own motion or by any other member of the Urban Council rising to a point of order.</p> | <p>Preservation of Order.</p> |
| <p>36. When the question of order has been stated, the member who raises it shall resume his seat, and no other member except by leave of the Chairman or presiding Council or of the meeting shall speak till the Chairman has decided the question. After which the member who was addressing the Urban Council or Committee of the Urban Council at the time of question was raised shall be entitled to proceed with his speech, if he conforms to the Chairman's ruling or ruling of the Committee of the Council. If he does not conform, the Chairman may refuse to allow him to proceed with his speech.</p> | <p>Decision on questions of Order.</p> |
| <p>37. Any member who fails to explain or to retract any objectionable words used by him or to offer apologies for the use thereof to the satisfaction of the Urban Council may be censured or otherwise dealt with as the Urban Council thinks fit.</p> | <p>Member not explaining or retracting procedure.</p> |
| <p>38. When the Chairman of a meeting has expressed his desire to speak, any member then speaking shall immediately resume his seat.</p> | <p>When Chairman speaks.</p> |

39. (1) The Chairman of a meeting may name any member who disregards the authority of the Chair, or abuses the provisions of these bylaws of the Urban Council by persistently and willfully obstructing the business of the Urban Council, and the Chairman may forthwith put the question on a motion being made by any member or from the Chair (no amendment, adjournment or debate being allowed) “that such member be suspended from the service of the Urban Council”.
 - (2) If any such motion be carried and any member be suspended under this section, this suspension on the first occasion shall continue for one month, on the second occasion for two months, and on the third or subsequent occasion for three months.
 - (3) Not more than one member shall be named at the same time, unless several members present together have jointly disregarded the authority of the Chair.
 - (4) If any member or members acting jointly who have been suspended under this rule from the service of the Urban Council, shall refuse at any time during the period of suspension to obey the directions of the Chairman of a meeting to withdraw from the precincts of the Urban Council Chamber, the Chairman may direct such step be taken as are required to enforce his decision.
- Irrelevance or
Tedious
Repetition.
40. The Chairman of a meeting, after having called attention to the conduct of a member who persists in irrelevance or tedious repetition, either of his own arguments or of the arguments used by members in debate, may direct the member to discontinue his speech.
- Disorderly
Conduct.
41. (1) The Chairman of a meeting may order members whose conduct is grossly disorderly to withdraw immediately from the Urban Council Chamber during the remainder of that day’s sitting and may direct such steps to be taken as are required to enforce his order.
 - (2) If on any occasion the Chairman of a meeting deems that his powers under this are inadequate he may name such member or members in pursuance of the provisions of Section 39.
- Duty to obey order
of suspension or
withdrawal.
42. Members who are suspended under this rule or are directed to withdraw shall forthwith withdraw from the precincts of the Urban Council Chamber.
- Power to Adjourn.
43. An adjournment of the discussion of any question may be moved by a member at any time and if seconded, shall be forthwith put to the vote. In the event of a grave disorder arising at a meeting, the Chairman of the meeting may, if he thinks it necessary to do so, adjourn the meeting without putting the question of adjournment to the Urban Council or suspend the meeting for a time to be named by him.
- Rule for members’
speaking.
44. In speaking to any preposition under consideration of the Urban Council or a committee of the whole Council the following rules shall be strictly observed:-
 - (a) Every member shall at a meeting except in Committee address his observations to the Chairman of the meeting and shall speak standing.
 - (b) No member shall be interrupted while he is speaking unless he is speaking out of order.
 - (c) When any member concludes his observations he shall resume his seat and any other member wishing to address the Urban Council may then speak.
 - (d) A member shall not read his speech, but he may read extracts from written or printed papers in support of his arguments.
 - (e) If two members speak or desire to speak at the same time at a meeting the Chairman of the meeting shall call on the member who first catches his eye.
 - (f) Every member shall confine his observations to the subject under consideration.

- (g) No member shall impute improper motives to any other member.
- (h) All remarks of a personal nature shall be avoided.
- (i) A member shall speak to the question before the Urban Council or any amendment proposed thereto.
- (j) No member shall speak more than once on any proposition before the Urban Council except in explanation to order, or when the Urban Council is in committee.
- (k) By the indulgence of the Urban Council, a member may explain matters of a personal nature, although there is no question before the Council, but such matters may not be debated and he must confine himself strictly to the vindication of his own conduct.
- (l) The mover of any resolution or motion may reply after all the members present have had an opportunity of addressing the Urban Council and before the question is put, but he shall strictly confine himself to answering previous speakers, and shall not introduce any new matter into the debate. The right to reply shall not extend to the mover of an amendment.

45. The Urban Council may at any time resolve itself into a Committee of the Whole Council and on its resuming the result of its deliberations Committee of the shall be dealt with by the Urban Council.

Conversion of
Council into
Committee of the
Council.

It shall be competent for any member at any stage of any discussion in a Committee of the whole Urban Council to move that the Urban Council to resume.

The question shall be put to the vote by the Chairman of the Committee and, if the motion is carried, the Urban Council must immediately resume from Committee.

46. (1) The Urban Council shall appoint such Advisory Committees subject to the provisions stated in the original written law.
- (2) No such Committee shall take any proceedings after the expiration of the period for which it has been appointed.
- (3) The Chairman of Urban Council shall be the ex-officio Chairman of a Financial and Policy Committee appointed by the Urban Council.
- (4) The quorum for the meetings of every such Committee shall be one- third of the number of members of the committee in office on the date of the meeting. When one-third of such number is an integer and fraction, the integer immediately higher to that integer and fraction shall be deemed to be one-third for the purpose of this rule.
- (5) In the occasion where a combined meeting is held with the Committee on Finance appointed by the Urban Council, the Chairman of Urban Council shall chair the combined meeting and convening of a combined meeting should be carried out by the Chairman.
- (6) Unless there is a one third of quorum present at a combined committee meeting that comprises two committees or more than that and unless one member of each committee in the combined meeting has made their presence, no proceedings shall take place at such a combined committee meeting.

Advisory
Committees.

- (7) In the absence of the Chairman at a meeting of any Committee, the members shall choose one of their members to preside, and such member shall for that meeting have all the powers of the Chairman.
- (8) When a Committee shall have agreed to a report, the report shall be signed by all the members thereof and shall together with the minutes of proceedings, be submitted to the Urban Council.
- (9) The electronic and print media shall be excluded from all meetings of Advisory Committees.

Attendance.

47. All members shall record their attendance when they attend meetings of the Urban Council or Committee, in an Attendance Register maintained by the Secretary for this purpose and kept in his custody.
48. Unless other interpretation relating to text is required, in this bylaw “Council” means the Urban Council of Kolonnawa established under the Urban Councils Ordinance (Chapter 255), “Chairman” means the Chairman appointed to Urban Council of Kolonnawa.
- “Advisory Committee” means all the Committees appointed under the Urban Councils Ordinance (Chapter 255) to advise the Council.

Inconsistency
among texts.

49. In case of any inconsistency between Sinhala and English/ Tamil texts of this bylaw, Sinhala text shall prevail.

01-340